

JORDAN 2018 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Hashemite Kingdom of Jordan is a constitutional monarchy ruled by King Abdullah II bin Hussein. The constitution concentrates executive and legislative authority in the king. The multiparty parliament consists of the 65-member House of Notables (Majlis al-Ayan) appointed by the king and a 130-member elected lower house, the Chamber of Deputies (Majlis al-Nuwwab). Elections for the Chamber of Deputies occur approximately every four years and last took place in 2016. International observers deemed the elections organized, inclusive, credible, and technically well run.

Civilian authorities maintained effective control over the security forces.

Human rights issues included allegations of torture by security officials, including at least one death in custody; arbitrary arrest and detention, including of activists and journalists; infringements on citizens' privacy rights; undue restrictions on free expression and the press, including criminalization of libel, censorship, and internet site blocking; restrictions on freedom of association and assembly; reports of refoulement of Syrian and Palestinian refugees to Syria without adjudication of whether they had a well-founded fear of persecution; allegations of corruption, including in the judiciary; "honor" killings of women; violence against lesbian, gay, bisexual, transgender, and intersex (LGBTI) persons; and conditions amounting to forced labor in some sectors.

Impunity remained widespread, although the government took limited, nontransparent steps to investigate, prosecute, and punish officials who committed abuses. Information on the outcomes was not publicly available.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were some reports of arbitrary or unlawful deprivation of life. Local media, government authorities, and human rights organizations alleged that at least one individual died in custody from alleged torture by Public Security Directorate (PSD)-Criminal Investigations Division (CID) personnel during the year.

In August the Government Coordinator for Human Rights (GCHR) stated the police court was considering one new case of alleged torture and abuse by CID personnel leading to death. Authorities arrested Ibrahim Zahran in Zarqa in June and transferred him to CID custody in Amman, where authorities allegedly beat him to death within 24 hours. PSD Commander Major General Fadel Hmoud immediately opened an investigation and assigned a committee to assess forensic reports to determine criminal liability.

Authorities suspended and detained five CID officers in the course of the investigation. The PSD's investigation into the incident confirmed the individual's cause and manner of death was consistent with beating. The quasi-governmental watchdog National Center for Human Rights (NCHR) commended the prompt investigation but described it as "not enough." The NCHR reiterated its demand to refer such cases to independent civil courts instead of police courts, which fall under the Ministry of Interior and are less independent. In addition to the arrest and prosecution of the officers, the PSD director issued new policy directives regarding the treatment of those in custody including independent reviews of their medical condition and further reviews of detention facilities. The PSD took steps to create a centralized and monitored detention facility to provide compliance with detention policies.

Four additional police court cases continued: the pending trial of eight officers charged with torture after the death of 18-year-old Raed Amar at Jiza police station in May 2017; the trial concerning the 2015 death while in custody of Abdullah al-Zo'ubi (the trial convicted three officers of "torture," but they appealed the decision); the trial for the 2015 death while in custody of Omar al-Nasir (continuing, with all participants free on bail); and the not guilty verdict concerning the death while in custody of Sultan al-Khatatbeh in 2013, currently under appeal.

b. Disappearance

Human rights lawyers identified at least one case of alleged disappearance during the year, when a robbery suspect was held for 10 days in February in an Irbid police station before authorities brought charges against him. After being turned away from several police stations when trying to locate his son, the robbery suspect's father filed an official complaint with the PSD and sought support from a local human rights organization.

According to the PSD, historically disappearances have resulted from poor record keeping, which they addressed in July by instituting a logbook with time of intake, charges, time of family notification, name of the arresting official, and the signature of the detainee.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution bans torture, including psychological harm, by public officials and provides penalties up to three years' imprisonment for its use, with a penalty of up to 15 years if serious injury occurs. While the law prohibits such practices, international and local nongovernmental organizations (NGOs) continued to report incidents of torture and widespread mistreatment in police and security detention centers. Human rights lawyers found the penal code ambiguous and supported amendments to define "torture" better and strengthen sentencing guidelines. According to government officials, all reported allegations of abuse in custody were thoroughly investigated. Legal aid NGOs disagreed, sharing three cases where they claimed defendants made statements to public prosecutors that they had been tortured, and that the disclosures had been stricken from the record.

Local and international NGOs reported that the Antinarcotics Department routinely subjected detainees to severe physical abuse. Allegations were also made against the CID, which led to criminal charges. While there was no documentation of complaints of mistreatment by the General Intelligence Directorate (GID) during the year, local NGOs said it still occurred, but citizens did not report abuse due to fear of potential reprisals.

Through August 30, the PSD Human Rights and Transparency Office received 192 allegations of harm (a lesser charge than torture that does not require a demonstration of intent) against officers. Most alleged abuse occurred in pretrial detention. For instance, when authorities referred the robbery suspect identified under section 1.b. "Disappearance" to the State Security Court (SCC) after 10 days in detention, the medical examination noted bruising and signs of abuse.

In August 2017 parliament increased the mandatory minimum sentence for torture from six months to one year. The maximum punishment remained three years imprisonment with hard labor with an increased penalty of up to 15 years if serious injury occurred. No convictions have been made under the new penalty, despite an increase in complaints from citizens concerning allegations of mistreatment by law

enforcement from last year, according to the NCHR report released on September 10.

Prison and Detention Center Conditions

Conditions in the country's 16 prisons varied: old facilities were poor, while new prisons met international standards. Authorities held migrants without legal work or residency permits, or charged with other crimes, in the same facilities as citizens. (For information on asylum seekers and refugees, see section 2.d.).

Physical Conditions: During the year, authorities gave prosecutors oversight over the condition of detainees. From January to July, the PSD Human Rights and Transparency Office made 136 visits to detention centers. Significant problems in older prison facilities included inadequate sanitary facilities, poor sanitation and ventilation, extreme temperatures, lack of drinking water, limited access to sunlight, and medical care only in emergencies. In its shadow report for this year's UN Human Rights Council Universal Periodic Review, including conditions in detention centers, the NCHR identified problems including overcrowding, limited health care, inadequate legal assistance for inmates, and limited social care for the inmates and their families. Detainees reported abuse and mistreatment by guards.

According to the PSD's Human Rights and Transparency Office, the PSD received 11 cases of allegations of torture and mistreatment in prisons and rehabilitation centers. Authorities convicted seven officers in the death of Ibrahim Zahran, although the officers appealed the verdict. Authorities released all on bail and placed them on administrative leave.

Officials reported overcrowding at most prisons, especially the prisons in and around Amman. The government Coordinator for Human Rights stated that 4,400 detainees above capacity remained in custody as of August.

International and domestic NGOs reported that Islamist prisoners faced harsher prison conditions than other inmates.

According to the PSD, authorities identified some facilities to hold only pretrial detainees. The GID held some persons detained on national security charges in a separate detention facility. During the year, the NCHR made an unspecified number of announced visits to the GID facility, and the GID began allowing the NCHR unsupervised meetings with prisoners. Detainees complained of solitary confinement, isolation, and prolonged pretrial detentions of up to six months.

According to human rights activists, the GID held detainees in solitary confinement. Local and international NGOs received reports of mistreatment, abuse, and torture in GID detention facilities.

Although basic medical care was available in all correctional facilities, medical staff complained that correctional facilities throughout the country lacked adequate medical facilities, supplies, and staff. Staff complained that they voiced concerns about deficiencies of care, which authorities did not address. Most facilities were unable to conduct blood tests and had limited X-ray capabilities, forcing doctors to rely largely on self-reporting by patients for certain conditions. If an inmate's condition was too severe for treatment at the prison's clinic, doctors recommended transfer to a local hospital.

Conditions in the women's prisons were generally better than conditions in most of the men's prisons.

Police stations have no designated holding areas for juveniles. According to the GCHR, authorities held juveniles in special facilities supervised by the Ministry of Social Development. No action was taken to improve mobility in detention centers for persons with disabilities.

Administration: Karamah, a team of government officials and NGOs, and the NCHR monitored prison conditions. In some cases, authorities severely restricted the access of prisoners and detainees to visitors. Authorities allegedly sometimes banned family visits. Authorities sometimes did not inform the families regarding the whereabouts of detainees, or waited between 24 hours and 10 days to alert families, although the PSD attempted to address this problem with a new system of record keeping.

Independent Monitoring: The government permitted some local and international human rights observers and lawyers to visit prisons and conduct private interviews. The International Committee of the Red Cross (ICRC) had wide access to visit prisoners and detainees in all prisons, including facilities operated by the GID, according to standard ICRC modalities. Authorities approved some requests by local human rights observers to conduct monitoring visits independently of Karamah and the NCHR but denied others. Local NGOs reported that access depended on relationships with detention center authorities and whether requests came through the GCHR or the NCHR. The prime minister-appointed government coordinator for human rights organized monitoring visits for several local and international NGO representatives to the Jweideh Prison and Suwaqah Prison.

Improvements: The PSD decided to close rural detention centers that did not meet national and international standards permanently and instead focus on expanding central facilities that met standards. Authorities significantly expanded Jweideh prison this year to address overcrowding. Authorities took steps to use alternatives to prison sentences for nonviolent offenders. In August a community sanctions program was inaugurated that will require community service in lieu of jail time for misdemeanors and felonies that would currently warrant a jail sentence of one year or less. In September, the East Amman First Instance judge sentenced an offender to community service of between 40 and 200 hours and a year under surveillance instead of a prison sentence.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his or her arrest or detention in court; however, the government did not always observe these prohibitions.

Role of the Police and Security Apparatus

Civilian authorities maintained control over security forces. The PSD controls general police functions. The PSD, the GID, the gendarmerie, the Civil Defense Directorate, and the military share responsibility for maintaining internal security. The PSD, the Civil Defense Directorate, and the gendarmerie report to the minister of interior with direct access to the king when necessary, and the GID reports directly to the king.

According to local and international NGOs, the government rarely investigated allegations of abuse or corruption, and, when it did, there were few convictions and little to no public information or transparency about the investigation or sentencing. Local and international NGOs and activists alleged widespread impunity; however, the PSD disagreed with this characterization. During the year, the PSD director implemented new policies to increase transparency in investigations of allegations of police abuse and pledged to hold officers and their supervisors accountable for their actions. Citizens may file complaints of police abuse or corruption with the PSD's Human Rights and Transparency Office or with a police prosecutor stationed with each unit and at each prison. Citizens may file complaints of abuse and corruption by the gendarmerie directly with the PSD's Human Rights and Transparency Office. A GID liaison officer receives complaints against the directorate and refers them to GID personnel for

investigation. Citizens may also file complaints against the PSD, gendarmerie, and the GID with the NCHR, several human rights NGOs, or the civilian prosecutor general.

The PSD's Special Branch Unit is tasked with investigating allegations of police abuse and corruption. According to the law, the PSD and the GID try their personnel internally with their own courts, judges, and prosecutors. Although court hearings are typically public, authorities rarely published reports about the proceedings. The government seconded civilian prosecutors to these courts in response to human rights recommendations. According to human rights organizations and lawyers, trials proceeded slowly and rarely yielded substantive punishments for human rights violations; authorities did not make such punishments public. Human rights activists cited fear of official retribution as a reason for the overall lack of official complaints of human rights violations.

The PSD includes a mandatory module on human rights in required annual training for all personnel including cadets. There is also a mandatory module on human rights in the required training for all new officers in each unit. On May 1, a new human rights training center opened to provide collaborative training to all branches of the PSD. In January, the gendarmerie established a human rights office to train and support forces conducting raids and crowd control more effectively.

During the year, there were few reported instances of security forces using excessive force with impunity and failing to protect demonstrators from violence. In May and June, during sustained protests that forced the former prime minister's resignation, NGOs agreed that the PSD and gendarmerie forces exercised appropriate restraint while maintaining public order and allowing freedom of expression.

In January, the PSD director ordered immediate investigation of a video reportedly showing police officers mistreating a citizen while arresting him in Karak. The officers were detained at the PSD detention center but subsequently released and placed on administrative leave, pending the results of the investigation, which continued.

Arrest Procedures and Treatment of Detainees

The law provides the right to appear promptly before a judge or other judicial officer for a judicial determination of the legality of the detention. The law allows

authorities to detain suspects for up to 24 hours without a warrant in all cases. It requires that police notify authorities within 24 hours of an arrest and that authorities file formal charges within 15 days of an arrest. Authorities can extend the period to file formal charges to as long as six months for a felony and two months for a misdemeanor. According to local NGOs, prosecutors routinely requested extensions, which judges granted. The SSC authorizes judicial police to arrest and keep persons in custody for seven days prior to notification while conducting criminal investigations. This authority includes arrests for alleged misdemeanors. NGOs alleged that authorities transferred suspects to the SSC to extend the legal time from 24 hours to seven days for investigation prior to notification or transferred suspects from police station to police station to extend the period for investigation. During the summer, authorities implemented a logistical system and standardized record keeping practices designed to reduce the pretrial detention period by holding arresting officials accountable for enforcing the law.

The penal code allows bail, and authorities used it in some cases. In many cases, the accused remained in detention without bail during the proceedings. In July 2017, parliament amended the code of criminal procedure, limiting detention to “exceptional” cases, and strengthening bail and other alternative control measures. In July, the Ministry of Justice proposed a funding application to the Ministry of Finance to purchase electronic bracelets to reduce the number of pretrial detainees in custody. A new PSD regulation instituted during the year contains criteria exempting persons from pretrial detention if they have no existing criminal record and the crime is not a felony.

Most detainees reported not having timely access to a lawyer. Courts appointed lawyers to represent indigent defendants charged with felonies carrying possible life (often interpreted by the judiciary as 20 years) sentences or the death penalty, although legal aid services remained minimal. At times authorities held suspects incommunicado for up to one week or placed them under house arrest. A number of human rights activists alleged that authorities held arrestees incommunicado to hide evidence of physical abuse by security forces. Courts did not offer adequate translation services for defendants who could not speak Arabic.

Arbitrary Arrest: In cases purportedly involving state security, security forces at times arrested and detained individuals without informing them of the charges against them and either did not allow defendants to meet with their lawyers or did not permit meetings until shortly before trial. In August, PSD’s Human Rights and Transparency Office reported authorities held 1,690 persons since January in

administrative detention for varying amounts of time. Governors held almost 35,000 persons in administrative detention under the Crimes Prevention Law, an increase of almost 5,000 persons from 2016.

The law allows the 12 provincial governors to detain individuals administratively as they deem necessary for investigation purposes or to protect that individual. Authorities held some individuals in prison or under house arrest without due process and often despite a finding of not guilty in legal proceedings. The governors may prolong detentions, especially those with a criminal history in the interest of “public security” under the Crime Prevention Law. Governors used this provision widely. Several international and national NGOs, along with the NCHR, alleged governors routinely abused the law, imprisoning individuals when there was not enough evidence to convict them, and prolonging the detention of prisoners whose sentences had been completed.

In August, the Ministry of Social Development opened a shelter for women at risk of violence and “honor” crimes. While previously authorities held these women in the same administrative detention facilities as criminals, the PSD now transferred them directly to the shelter. The shelter has space for 40 women, which is higher than the number held in protective detention in 2017. NGOs reported decreased numbers of women at risk of becoming victims of “honor” crimes. As of October, authorities had transferred 10 women to the shelter, with 16 awaiting transfer from Juwaidah Prison.

During the year local NGOs said that officials detained migrant laborers in arbitrary arrests; those whose employers did not administratively secure their release were held for working without authorization, being absent from their authorized workplace, or lacking proper residency permits. One domestic worker claimed that security forces stopped her on the street to ask for her documentation and took her to a detention facility when she was not able to furnish it immediately, without giving her the opportunity to contact her employer to explain her absence or obtain the needed documents.

Pretrial Detention: The law criminalizes detaining any person for more than 24 hours without a prosecutor’s authorization. Rights activists said authorities routinely ignored this limit, and according to human rights organizations, impunity was very common for violations. As of March 44 percent of all detainees were pretrial detainees, according to the University of London’s World Prison Brief, a 7 percent increase from 2017.

The common practice of judges granting extensions to prosecutors prior to filing formal charges unnecessarily lengthened pretrial detention, which lasted anywhere from three days to several years. While judicial reforms implemented this year, such as specialization of judges and prosecutors, were designed to address this problem, the Ministry of Justice lacked the capacity to provide legally mandatory legal aid and translation services and struggled to coordinate witness attendance and transportation of defendants to and from the court. Automation of several legal procedures in recent years reduced the average period of pretrial detention, according to local legal aid organizations, but increased the number of persons in administrative detention using the discretion granted to governors.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: The law does not have an explicit provision that entitles victims of arbitrary or unlawful detention to restitution. The Criminal Procedures Law does not provide for routine judicial review of administrative detentions ordered by the 12 governors. Detainees can bring civil lawsuits for restitution for arbitrary or unlawful detention or bring criminal lawsuits for illegal incarceration, but this option rarely occurred. Detainees must hire a lawyer with at least five years' experience, must pay their own fees, and must present a copy of the order of detention. There were no cases of restitution during the year.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, but legal experts and human rights lawyers' allegations of nepotism and the influence of security services and special interests raised concerns about the judiciary's independence. Additionally, judicial inefficiency and a large case backlog delayed the provision of justice. In August 2017, parliament passed a bill that provided further provisions for an independent judiciary and better qualitative performance of courts, which was implemented this year. This bill also included the specialization of prosecutors and judges, moving away from generalized prosecutors and judges who handle a full range of criminal cases, toward a system in which cases are referred to individuals with legal and subject matter expertise on the specific charges.

Trial Procedures

The law provides for the right to a fair and public trial, and the judiciary generally sought to enforce this right. The law presumes that defendants are innocent. However, officials sometimes did not respect the right of defendants to be informed promptly and in detail of the charges against them or to a fair and public

trial without undue delay. According to the law, all civilian court trials and SSC trials are open to the public unless the court determines that the trial should be closed to protect the public interest. Authorities occasionally tried defendants in their absence. The country allows defendants to be tried in their absence, but it requires a retrial upon their return. The SSC has more restrictions than the other courts on conducting trials when the defendant is not present. Defendants are entitled to legal counsel, provided at public expense for the indigent in cases involving the death penalty or life imprisonment, but only at the trial stage. Most criminal defendants lacked legal representation prior to and at trial. Frequently, defendants before the SSC met with their attorneys only one or two days before their trial began. Authorities did not accord defendants adequate time and facilities to prepare their defense. Authorities did not uniformly provide foreign residents, especially foreign workers who often did not speak Arabic, with free translation and defense. The government at times prevented civil society organizations from providing legal aid to clients, despite lacking the capacity to address new cases or the current backlog.

Defendants may present witnesses and evidence and may cross-examine witnesses presented against them. Defendants do not have the right to refuse to testify. Although the constitution prohibits the use of confessions extracted by torture, human rights activists noted that courts routinely accepted confessions allegedly extracted under torture or mistreatment. Defendants can appeal verdicts; appeals are automatic for cases involving the death penalty or a sentence of more than 10 years' imprisonment. When defendants at trial recant their confessions obtained during the criminal investigation, those confessions are not used against the defendant; the trial then relies solely on the evidence collected and presented at trial.

In the SSC, defendants have the right to appeal their sentences to the Court of Cassation, which has the authority to review issues of both fact and law.

The government allowed international observers to visit the SSC and the Military and Police Courts to observe court proceedings throughout the year. For example, on July 1, officers of a foreign embassy observed a terrorism case being tried at the State Security Court.

Civil, criminal, and commercial courts accord equal weight to the testimony of men and women. In sharia courts, which have jurisdiction over Muslim marriage, divorce, and inheritance cases, the testimony of one man equals that of two women.

The Juvenile Law places the age of criminal responsibility at 12 years. The law stipulates that juveniles charged with committing a crime along with an adult be tried in a juvenile court. There is one case pending at the SSC of a juvenile charged with terrorism-related offenses for involvement in the 2016 terrorist cell in Irbid. Juveniles tried at the SSC were held in juvenile detention centers. The law stipulates alternative penalties for juvenile offenders, including vocational training and community service.

Political Prisoners and Detainees

During the year, there were a few instances of the government detaining and imprisoning activists for political reasons including criticizing the government, criticizing the government's foreign policy, publishing criticism of government officials and official bodies, criticizing foreign countries, and chanting slogans against the king. Citizens and NGOs alleged the government continued to detain other individuals for political reasons and that governors continued to use administrative detention for what appeared to be political reasons.

The GID detained Ayman Ajawi, the president of the Polytechnic College Student Union, for two weeks after he led protests in late February calling for basic services and campus infrastructure improvements. Ajawi's father and lawyer told media that the GID prevented them from seeing him in detention. Members of parliament pressed the minister of higher education to intervene on Ajawi's behalf, and more than 50 students from universities protested in front of the Ministry of Higher Education to demand his immediate release. In March, authorities released Ajawi on bail.

In March, the Jordan Bar Association accused the State Security Court of prosecuting political activists under the guise of upholding national security. In protest, they suspended their members from representing clients before the State Security Court. When they realized that clients would then have to appear in court without representation, they lifted the suspension.

Civil Judicial Procedures and Remedies

Individuals may bring civil lawsuits related to human rights violations through domestic courts.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, but individuals widely believed that security officers monitored telephone conversations and internet communication, read private correspondence, and engaged in surveillance without court orders. While no examples were given to justify these beliefs, they widely believed the government employed an informer system within political movements and human rights organizations.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Expression, Including for the Press

The constitution provides that “The State shall guarantee freedom of opinion; and every Jordanian shall freely express his opinion by speech, writing, photography, and the other means of expression, provided that he does not go beyond the limits of the law.” Authorities applied regulations to limit freedom of speech and press in practice. Authorities applied articles of the Counterterrorism Law, the Cybercrimes Law, the Press and Publications Law, and the penal code to arrest local journalists.

Freedom of Expression: The law permits punishment of up to three years’ imprisonment for insulting the king, slandering the government or foreign leaders, offending religious beliefs, or stirring sectarian strife and sedition. During the year, the government restricted the ability of individuals to criticize the government by arresting a number of activists for political expression. Authorities used laws against slander of public officials, blackmail, and libel to restrict public discussion, as well as employed official gag orders issued by the public prosecutor.

In January 2017, authorities arrested retired major general Mohammed Otoum and seven other activists protesting against expected price increases and alleged government corruption on social media. The SSC prosecutor charged them with undermining the regime and engaging in acts to incite public opinion in breach of the law. Otoum and the other activists were acquitted during the year.

During economic protests in the spring, authorities arrested two prominent activists from Karak and Dhiban and charged them with treason for speaking against the king at a rally. Authorities released one on bail a month later. The second was

released after 15 days. Authorities referred both cases to the SSC, and they remained pending.

The August 2017 case against local journalist Mohammad Qaddah for slander, incitement, and defamation for reportedly posting a video on Facebook, which authorities described as “insulting” and “derogatory” to women in the country, continued.

The Media Commission licenses all public-opinion polls and survey research centers in accordance with the Press and Publication law.

Press and Media Freedom: All publications must obtain licenses from the government to operate. Multiple daily newspapers operated; observers considered several as independent of the government, including one regarded as close to the Islamic Action Front (the Muslim Brotherhood’s legally registered political party). Observers also judged several dailies to be close to the government. The independent print and broadcast media largely operated with limited restriction, and media observers reported government pressure, including the threat of large fines and prison sentences, to refrain from criticizing the royal family, discussing the GID, covering on-going security operations, using language deemed offensive to Islam, or slandering government officials. The government influenced news reporting and commentary through political pressure on editors and control over important editorial positions in government-affiliated media. For example, journalists of government-affiliated and independent media reported that security officials used bribes, threats, and political pressure to force editors to place articles favorable to the government in online and print newspapers.

The law grants the head of the Media Commission authority to close any unlicensed theater, satellite channel, or radio channel. During the year, the Media Commission granted broadcasting licenses to companies owned by citizens and foreigners. Those with licenses may not legally broadcast anything that would harm public order, social security, national security, or the country’s relations with a foreign country; incite hatred, terrorism, or violent sedition; or mislead or deceive the public. There is a fine for broadcasting without a license. The cabinet, however, must justify the reasons for rejecting a license and allow the applicant to appeal the decision to the judiciary.

In February, the Media Commission proposed broadcast licensing changes that would reduce fees for community radio stations, which typically struggled to pay standard annual costs; many rural areas of the country had no local radio reception.

Annual radio broadcasting fees were approximately 25,000 JD (\$35,236) for Greater Amman, 15,000 JD (\$21,142) for Zarqa and Irbid, and 10,000 JD (\$14,094) for other areas. The commission stated that fee exemptions for community radio stations would enhance decentralization and community development efforts outside the capital.

The *Al-Jazeera Jordan* office remained closed following the government's decision in 2017 to close it and withdraw its license in connection with the Qatar/Gulf dispute.

In December 2017 authorities detained Ro'ya TV correspondent Ziad Nseirat after he interviewed protestors criticizing transport and infrastructure degradation in the Bani Kinana area of Irbid. Police seized his phone and prevented him from making calls. Nseirat faced charges under the Cybercrimes Law and was released on bail two days later. Charges remained pending.

The government has a majority of seats on the board for the leading semiofficial daily newspaper, *al-Rai*, and a share of board seats for *ad-Dustour* daily newspaper. According to press freedom advocates, the GID's Media Department must approve editors in chief of progovernment newspapers.

Media observers noted that, when covering controversial subjects, the government-owned Jordan Television, Jordan News Agency, and Radio Jordan reported only the government's position.

By law, any book can be published and distributed freely. However, if the Media Commission deems that passages violate public norms and values, are religiously offensive, or are "insulting" to the king, it can request a court order to prohibit the distribution of the book. The Media Commission banned distribution of 47 books from October 2017 through August 2018 for insulting religion, having pornographic images, and promoting homosexuality. It approved the importation of over 300,000 books.

Violence and Harassment: The government subjected journalists to harassment and intimidation.

In its annual report, *The Status of Media Freedoms in Jordan in 2017*, the Center for Defending the Freedom of Journalists (CDFJ) documented numerous violations of freedoms against journalists and media organizations.

Authorities arrested or temporarily detained some journalists, and government officials or private individuals threatened some journalists.

Al-Rai journalist Hussein al-Sharaa was sentenced to six months' imprisonment (the highest sentence for such offense) following a complaint filed against him by the PSD for a post he wrote on Facebook, which the PSD considered offensive. The Jordan Press Association appealed the verdict for issuing it without the presence of the defendant's lawyer. The appeals court released al-Sharaa on bail until the judicial procedures are completed.

Censorship or Content Restrictions: The government directly and indirectly censored the media. The CDFJ report noted increased incidents of authorities restricting journalists' coverage and recorded self-censorship among journalists in 2017 as the highest since 2014. Journalists claimed that the government used informants in newsrooms, exercised influence over reporting, and GID officials censored reporting. Editors reportedly received telephone calls from security officials instructing them how to cover events or to refrain from covering certain topics or events, especially criticism of political reform. Bribery of journalists took place and undermined independent reporting. Occasionally, government officials provided texts for journalists to publish under their bylines. An opinion poll conducted among 1,232 media figures found 94.1 percent of journalists self-censored. Journalists cited the declining financial conditions of media outlets, the threat of detention and imprisonment for defamation for a variety of offenses, and court-ordered compensation of as much as 150,000 Jordanian dinars (JD) (\$210,000). At times editors in chief censored articles to prevent lawsuits. The government's use of "soft containment" of journalists, including withholding financial support, scholarships for relatives, and special invitations, led to significant control of media content.

During the year, the Media Commission did not circulate any official gag orders restricting discussion in all forms of media, including social media. For grand felony cases or cases of domestic violence, the public prosecutor may issue a gag order to protect the victims or witnesses involved. For example, the West Amman public prosecutor issued a gag order concerning a tribal dispute, when a group of men attacked a person on May 7, resulting in riots in the city of Madaba.

The Media Commission continued to ban the distribution of selected books for religious and moral reasons.

Libel/Slander Laws: Government prosecutors relied on privately initiated libel, slander, and defamation lawsuits to suppress criticism of public figures and policies. Dozens of journalists, as well as members of parliament, faced libel and slander accusations filed by private citizens.

In January, authorities arrested a journalist and social media activist for defamation after publishing allegations the minister of finance at the time evaded paying taxes. They were released on bail two days later.

National Security: The government used laws protecting national security to restrict criticism of government policies and officials.

Internet Freedom

The government restricted or disrupted access to the internet and censored online content; there were credible reports that the government monitored private online communications without appropriate legal authority. The law requires the licensing and registration of online news websites, holds editors responsible for readers' comments on their websites, requires that website owners provide the government with the personal data of its users, and mandates that editors in chief be members of the Jordan Press Association. The law gives authorities explicit power to block and censor websites.

Authorities continued to block the website of an online lifestyle magazine with an LGBTI target audience on the grounds that it was an unlicensed publication.

According to the Media Commission, there is no registration fee for a website. News websites must employ editors in chief with at least four years' membership in the Jordan Press Association. The owner and editor in chief can be fined between 3,000 JD (\$4,200) and 5,000 JD (\$7,000), in addition to criminal penalties, for website content that "includes humiliation, defamation, or disparagement of individuals in a manner that violates their personal freedoms or spreads false rumors about them."

According to journalists, security forces reportedly demanded websites remove some posted articles. The government threatened websites and journalists that criticized the government, while it actively supported those that reported favorably on the government. The government monitored electronic correspondence and internet chat sites. Individuals believed they were unable to express their views fully or freely via the internet, including by personal email.

In November 2017, according to lawyers, an Amman civil court denied bail for the 10th time to two individuals allegedly detained for social media posts accusing a royal court official of corruption. A number of activists and journalists protested at the royal court demanding the detainees' release. As of November 16, there was no further information on release of the detainees.

According to the World Bank, internet penetration was 87.8 percent during the year, up 12.8 percent from last year.

Academic Freedom and Cultural Events

The government placed some limits on academic freedom. Some members of the academic community claimed there was a continuing intelligence presence in academic institutions, including monitoring academic conferences and lectures. The government monitored political meetings, speech on university campuses, and sermons in mosques and churches. Academics reported the GID must clear all university professors before their appointment. Academics also reported university administration must approve all research papers, forums, reading materials, movies, or seminars, and administrators clear potentially controversial material through the GID. Authorities edited commercial foreign films for objectionable content before screening in commercial theaters.

In March, the GID detained the president of the Polytechnic College Student Union, Ayman Ajawi, after he led protests in late February calling for basic services and campus infrastructure improvements. Authorities released him on bail two weeks later. Another 33 students at the Polytechnic College awaited disciplinary action for protesting his detention.

In April, the Polytechnic College referred 13 students to the judiciary for allegedly inciting hatred and provoking riots on campus. The case remained with the prosecutor.

b. Freedoms of Peaceful Assembly and Association

The government limited freedoms of peaceful assembly and association.

Freedom of Peaceful Assembly

The constitution provides for freedom of assembly, but the government limited this right. Security forces provided security at demonstrations granted permits by government or local authorities.

The law requires a 48-hour notification to the governor for any meeting or event hosted by any local or international group. While not required by law, several local and international NGOs reported that hotels, allegedly at the request of security officials, required them to present letters of approval from the governor prior to holding training, private meetings, or public conferences. There were 42 reported cases of governor denials without explanation this year. Without letters of approval from the government, hotels cancelled the events. In some cases, NGOs relocated the events to private offices. In one case the Amman governor's office informed a human rights organization it would not be allowed to proceed with hosting antitorture training at a hotel. The organization claimed that it was eventually permitted to host the training after threatening legal action against the governor.

Protests regarding economic policies, corruption, and government ineffectiveness occurred across several governorates throughout the spring and summer. A few hundred local tribal activists organized daily sit-ins lasting up to 70 days in the main town squares of Salt and Karak from February to May. Protestors generally spoke favorably about the government response.

In late May, labor unions joined the protest movement, leading to larger demonstrations across the country. According to government officials, protests were generally peaceful with 42 injuries to security personnel and 60 arrests for vandalism or assault. The Justice Center for Legal Aid, a civil society organization, operated a detention hotline during the protests where citizens could report violations of the government's pledge not to detain protestors for more than six hours. They reported one incident when a governor allegedly detained a group of 10 protestors for a prolonged period.

The government tabled the proposed tax reform law in response to the protests, leading to the resignation of then Prime Minister Hani Al-Mulki and his government. Police subsequently allegedly dispersed peaceful anticorruption protests under the new government headed by Prime Minister Razzaz.

Freedom of Association

The constitution provides for the right of association, but the government limited this freedom. The law authorizes the Ministry of Social Development and Ministry of Trade, Industry, and Supply to approve or reject applications to register organizations and to prohibit organizations from receiving foreign funding for any reason. It prohibits the use of associations for the benefit of any political organization. The law also gives the ministry significant control over the internal management of associations, including the ability to dissolve associations, approve boards of directors, send government representatives to any board meeting, prevent associations from merging their operations, and appoint an auditor to examine an association's finances for any reason. The law requires associations to inform the Ministry of Social Development of board meetings, submit all board decisions for approval, disclose members' names, and obtain security clearances for board members from the Interior Ministry. The law includes penalties, including fines up to 10,000 JD (\$14,000), for violations of the regulations.

In 2015, the Ministry of Social Development introduced an application form for the approval process for associations that receive foreign funding. Associations criticized the procedure, which incorporated additional ministries into the decision process and removed the deadline for review of funding requests. NGOs stated the registration process and foreign funding procedures were neither clear, transparent, nor consistently applied. Groups attempting to register experienced months of delays, and those for whom authorities denied their applications complained that they received inadequate explanations.

During the year, the Ministry of Social Development introduced an automated system for associations to apply for foreign funding and track their applications. As of August 30, the ministry received 5,735 applications for foreign funding and approved 190 of them. NGO's reported that unexplained, months-long delays in the decision process continued.

The law authorizes the Ministry of Social Development to intervene in NGO activities. Warned NGOs are given a two-month probationary period to address violations.

In June Amman's first instance court sentenced the chief executive officer of the Center for Defending Freedom of Journalists (CDFJ) to one year in prison for inaccuracies in the CDFJ's budget and operating under an incorrect legal status. The court also fined CDFJ 200 JD (\$282) for irregularities in its budget and organizational documents. In October, a Court of Appeal acquitted the CDFJ's chief executive officer of these charges. The Ministry of Industry, Trade, and

Supply alleged in 2017 that CDFJ violated foreign funding restrictions and ordered it to halt receipt of any foreign funding.

Citizens widely suspected that the government infiltrated civil society organizations, political parties, and human rights organizations and their internal meetings.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, although there were some restrictions.

The United Nations reported that the government generally cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to internally displaced persons (IDPs), refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern.

In-country Movement: The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers. The country's land border with Syria has been closed to new refugee arrivals since June 2016. During the June southwest offensive in Syria, the government maintained a closed border policy, preventing new asylum seekers from entering the country. Some of these newly displaced persons, however, received emergency humanitarian assistance from inside the Free Trade Zone between Jordan and Syria. There was no legal framework for refugees residing in the Jordanian refugee camps to leave permanently to settle in host communities for family reunification; long-term medical treatment was unavailable in the camps.

The government registered and facilitated access to civil documentation for Syrian refugees. The Urban Verification Exercise for refugees has steadily expanded, and the government increased access to birth and marriage certificates by simplifying and reducing the costs. While on several occasions, the government allowed the regularization of certain refugees who left the camps to settle in host communities,

there was generally no option for camp residents to move permanently into rural and urban areas and only limited options to move in and out of camps.

Conversely, reports of forced relocations to Azraq camp, including many to Azraq's restricted Village 5 (V5), increased as an alternative to deportation, for offenses by Syrian refugees that encompassed "irregular status" (for example, no updated registration, working without a work permit); criminal activities; and potential security risks, without the latter being clearly defined. As of June, Azraq camp hosted over 36,000 individuals, including over 9,000 adults and children, in the fenced-off area V5. Residents of V5 had access to basic humanitarian assistance inside the village but access to the broader camp facilities, including the camp hospital, required a security escort. The screening process allowing V5 residents to relocate to the larger camp was irregular and very slow. Reportedly, since entering Jordan from Syria, two thirds of the residents have remained in V5 for more than two years. It remained unclear whether individuals in Azraq V5 will be permitted to move to less restrictive, unfenced areas in the camp or to host communities.

Authorities required all residents of King Abdullah Park refugee camp, to obtain a leave permit, which was not systematically granted, to visit their relatives in Jordan or for other purposes. Authorities made some exceptions for the sick and elderly to allow twice-monthly visits. Palestinian Refugees from Syria (PRS) accounted for 354 of the 509 refugees in the camp as of June, including "PRS Families" (families including at least one family member, which subjected them to specific treatment and limitation related to PRS).

Foreign Travel: Activists alleged authorities imposed travel bans against citizens.

Protection of Refugees

Refoulement: There were few reports of the government forcibly returning Syrian refugees and PRS, including women, children, war-injured persons, and persons with disabilities, to Syria. International organizations continued to report that the government forcibly returned to Syria some refugees residing in the country's host communities and camps for alleged security concerns and relocated others to various locations including Azraq camp V5. Some relocated individuals were held pending security vetting to ensure they did not pose a security risk. There was no established time period for security vetting.

Some reasons for returns and relocations were allegations of communicating with and sending money to relatives who are in ISIS-controlled territories in Syria and other activities that could create security concerns.

From October 2017 through July 2018, the UN Relief Works Agency (UNRWA) was aware of three cases of refoulement of 15 PRS. The vulnerability of PRS to deportation increased their risk of other abuses. For those who entered the country irregularly (for example, without required documentation, or using Syrian identity documents), refoulement was a constant risk, and access to basic civil services--including renewal of identity documents, the registration of marriages, deaths, and births--was highly complex. UNRWA reported that such activities could result in forced return to Syria, as well as detention and denaturalization. These vulnerabilities put refugees at additional risk of abuse by third parties such as employers and landlords.

Access to Asylum: The country's laws do not provide for the granting of asylum or refugee status, and the government lacked a formal system of protecting refugees. A 1998 memorandum of understanding between the government and UNHCR, renewed in 2014, contains the definition of a refugee, confirms adherence to the principle of nonrefoulement, and allows recognized refugees a maximum stay of one year, during which period UNHCR must find them a durable solution. The time limit is renewable, and the government generally did not force refugees to return to their country of origin. As of 2014, authorities required all Syrians in the country to register with the Ministry of Interior and obtain a ministry-issued identification card.

The government declared it would not accept additional Syrian refugees after a 2016 suicide attack along the northeast border with Syria, declaring the surrounding area a "closed military zone." The government restricted humanitarian access to the area. International organizations reported that between 45,000 and 50,000 internally displaced Syrians remained at the northeast desert Jordan-Syria border throughout the year. The government's 2013 announcement that it would not allow entry of PRS remained in effect.

Employment: In 2016, the government announced it would allow Syrian refugees access to the formal labor market and committed to providing 200,000 job opportunities for Syrians in the coming years. The Ministry of Labor issued more than 120,000 work permits to Syrians. More than 36,000 Syrian refugees received new or renewed work permits in 2018. The government took several steps to expand and facilitate the issuance of work permits, including waiving fees. The

government also revised work permit practices to allow Syrian workers in the agricultural and construction sectors to switch employers under the supervision of agricultural cooperatives and a trade union, rather than requiring new work permits for each job transfer.

There continued to be delays in implementing procedures at Ministry of Labor offices in governorates outside Amman. There remained uncertainty among the refugee population and employers regarding how to apply for the work permits. Tens of thousands of Syrian refugees continued to work in the informal economy. A government-commissioned study on migrant workers, published in 2016, estimated that 26 percent of Syrian refugees were economically active in the labor market. Very few non-Syrian refugees had access to the formal labor market, and, due to the difficulties and expenses involved in seeking work authorization, many worked in the unofficial labor market.

The United Nations reported that in general Syrian refugees working informally were no longer deported or sent to the refugee camps when caught working without authorization. During the year, the Ministries of Interior and Labor, in coordination with the United Nations, permitted refugees living in the camps to apply for work permits. The agreement allows camp-based refugees to use their work permits as a 30-day leave pass to work outside the camp. Camp-based refugees receiving work permits must report to the camp at least one day per month.

Some longstanding Palestinian refugees with Jordanian citizenship were integrated into the workforce. Almost 160,000 Palestinian refugees originally from Gaza, however, were not eligible for Jordanian citizenship, and authorities restricted their access to public services and employment. Additionally, according to UNRWA, authorities did not allow PRS to work, and a significant percentage remained without Jordanian documents.

Access to Basic Services: The government allowed Syrian and other UNHCR-registered refugees to access public health and education facilities. From 2014 until March, authorities charged Syrian refugees for health care at the same rates as uninsured Jordanians, who pay a nominal fee for most basic health services. Iraqi and other refugees must pay the foreigner's rate for health care. As of March authorities required Syrian refugees to pay 80 percent of the foreign resident rate for all medical costs.

The government continued to provide free primary and secondary education to Syrian refugee children and to permit all school-age Syrian refugees access to education. As of the end of the academic year 2017-18, authorities had not fully completed this objective, and an estimated 73,000 Syrians were still without formal or informal education. There were reports that some Syrian refugee children may not enroll in school if they do not have Ministry of Interior cards. Non-Syrian refugees must pay to attend government schools. Public schools, particularly in the north of the country, were overcrowded and operated on a double-shift schedule to accommodate Syrian students. The government increased the number of double-shift schools in an action designed to allow an additional 50,000 Syrian refugee students to obtain formal education as well as 126,000 refugee students enrolled in 2016-17.

For those not eligible to access formal education because they have been out of school for three or more years, the Ministry of Education developed a catch-up program that reached over 4,000 students between the ages of nine and 12 since 2016 and enrolled them at catch-up centers across the country in 2017-18. Children 13 years old and above, who were not eligible to enroll in formal education, could also participate in nonformal education drop-out programs implemented by NGO partners, in close coordination with the Ministry of Education.

Some Syrian children continued to face barriers to attending public schools, including lack of transportation, long distances to schools, bullying by fellow students and teachers, or child labor.

Palestinian refugees from Gaza who entered the country following the 1967 war were not entitled to services, including access to public assistance and higher education. Earlier refugees from Gaza, who came to Jordan between June 1946 and May 1948, were eligible to receive UNRWA services.

Temporary Protection: The government provided temporary protection to individuals who may not qualify as refugees. The government tolerated the prolonged stay of many Iraqis and other refugees beyond the expiration of the visit permits under which they had entered the country.

Stateless Persons

Only fathers can transmit citizenship. Women do not have the legal right to transmit citizenship to their children. Children of female citizens married to

noncitizens receive the nationality of the father and rely on a special identification card to enroll in school, access services, and obtain a driver's license. Since 2016, the Ministry of Education has formally allowed all children, regardless of nationality or status, to enroll in formal education, although in practice lacking proper paperwork did sometimes lead to delays or issues enrolling children in school. In guidelines announced by the government in 2014, if children of Jordanian mothers and noncitizen fathers apply and meet certain criteria, they may gain access to certain services enjoyed by citizens, including subsidized health care; the ability to own property, invest, and obtain a Jordanian driver's license; and have employment priority over other foreigners. This ruling affects tens of thousands of families, including hundreds of thousands of children, in which the father lacked Jordanian citizenship. An estimated 55,000 of these fathers were Palestinians. To access these services, children must obtain a special identification card through the Civil Status Bureau. Under the 2014 law, applicants must prove the maternal relationship, that the Jordanian mother has been resident in the country for five years, and that the children currently reside in the country. In 2016, the Civil Status Bureau began issuing identification cards to replace the initial certificates. In September, the cabinet removed the five-year residency requirement for Jordanian mothers. By law, the cabinet may approve citizenship for children of Jordanian mothers and foreign fathers under certain conditions, but this mechanism was not widely known, and approval rarely occurred.

Women may not petition for citizenship for noncitizen husbands, who may apply for citizenship only after fulfilling a requirement that they maintain continuous Jordanian residency for 15 years. Once a husband has obtained citizenship, he may apply to transmit citizenship to his children. Such an application could take years, and the government can deny the application.

Syrian refugees were sometimes unable to obtain birth certificates for children born in the country if they could not present an official marriage certificate or other nationality documents, which were sometimes lost or destroyed when they fled, or confiscated by government authorities when the refugees entered the country. A large number of Syrian marriages reportedly took place in Jordan without registration. The government opened a legal process for such cases to adjust and obtain registration documents. Refugee households headed by women faced difficulty in certifying nationality of offspring in absence of the father, which increased the risk of statelessness among this population. Civil registry departments and sharia courts in the Za'atri and Azraq camps helped refugees register births.

Section 3. Freedom to Participate in the Political Process

The law does not provide citizens the ability to choose their executive branch of government. The king appoints and dismisses the prime minister, cabinet, and upper house of parliament; can dissolve parliament; and directs major public policy initiatives. Citizens have the ability to choose the lower house of parliament in generally credible periodic elections based on universal and equal suffrage and conducted by secret ballot. Citizens also elect 97 of the 100 mayors, most members of governorate councils, and all members of municipal and local councils. While the voting process is well run, official obstacles to political party activity and campaigning limited participation. International organizations continued to have concerns about the gerrymandering of electoral districts. The cabinet, based on the prime minister's recommendations, appoints the mayors of Amman, Wadi Musa (Petra), and Aqaba, a special economic zone. Elections for the lower house of parliament took place in 2016. Elections for mayors, governorate councils, and municipal councils took place in August 2017.

Elections and Political Participation

Recent Elections: The government held parliamentary elections in 2016. The Independent Election Commission (IEC) administered the polls. The commission is an autonomous legal entity. It supervises and administers all phases of parliamentary elections, regional and municipal elections, as well as other elections called by the Council of Ministers. Local and foreign monitors noted the election was technically well administered. Politicians and activists reported most government interference occurred prior to the election, in the form of channeling support to preferred candidates and pressuring others not to run.

The election exhibited important technical competence in administration, but observers cited allegations of vote buying, ballot box tampering in one region, and other abuses. International and domestic observers of the election process expressed reservations about inadequacies in the electoral legal framework and stressed the need to allocate seats to districts proportionally based on population size.

Several Islamist parties participated in the 2016 parliamentary election, ending a six-year boycott. The Islamic Action Front won 15 seats, including 10 for party members.

The August 2017 governorate and municipal elections marked the first time the IEC administered subnational elections, since the Ministry of Interior conducted them until a 2014 constitutional amendment granted the IEC more authority. In addition to the election of mayors and local councils, the poll resulted in the election of new governorate-level councils. Many monitors praised the elections as technically well run, but a nongovernment elections monitoring body, Rased, registered more than 500 illegal incidents.

The elections took place under a decentralization law passed by parliament and ratified by the king in 2015. The law established an additional council to participate in the budgeting process at the governorate level; it is 85 percent elected and 15 percent appointed. The new council will work with the existing executive council, which is fully appointed. The appointed council is composed of technical experts from the central government.

Political Parties and Political Participation: The Political Parties Law places supervisory authority of political parties in the Ministry of Political and Parliamentary Affairs. Political parties must have 150 founding members, all of whom must be citizens habitually resident in the country and not be members of non-Jordanian political organizations, judges, or affiliated with the security services. There is no quota for women when founding a new political party. Parties may not be formed on the basis of religion, sect, race, gender, or origin (meaning that they may not make membership dependent on any of these factors). The law stipulates citizens may not be prosecuted for their political party affiliation. Most politicians believed that the GID would harass them if they attempted to form or join a political party with a policy platform. A 2016 bylaw stipulates 50,000 JD (\$70,000) annual financial support from the Ministry of Political and Parliamentary Affairs to registered political parties older than one year with more than 500 members from at least seven governorates, at least 10 percent of whom are women. The Committee on Political Party Affairs oversees the activities of political parties. The secretary general of the Ministry of Political and Parliamentary Affairs chairs the committee, which includes a representative from the Ministry of Interior, the Ministry of Justice, the Ministry of Culture, the National Center for Human Rights, and civil society. The law grants the committee the authority to approve or reject applications to establish or dissolve parties. It allows party founders to appeal a rejection to the judiciary within 60 days of the decision. According to the law, approved parties can only be dissolved subject to the party's own bylaws; or by a judicial decision for affiliation with a foreign entity, accepting funding from a foreign entity, violating provisions of the law, or violating provisions of the constitution. The law prohibits membership in

unlicensed political parties. There were approximately 50 registered political parties, but they were weak, generally had vague platforms, and were personality centered. The strongest and most organized political party was the Islamic Action Front.

At least one new political party successfully registered in late 2017. The party, however, postponed the official launch event in December 2017, when the Greater Amman Municipality initially blocked the rally due to “security concerns.” The launch event occurred in early 2018.

Participation of Women and Minorities: No laws limit participation of women or minorities in the political process, and they did participate. The electoral law limits parliamentary representation of certain minorities to designated quota seats. Human rights activists cited cultural bias against women as an impediment to women participating in political life on the same scale as men. There are quotas for women in the lower house of parliament, governorate councils, municipal councils, and local councils. Women elected competitively or appointed through quota systems tended to be small minorities in national and local legislative bodies and executive branch leadership positions.

The 29-member cabinet included seven female ministers: the minister of information and communications, the minister of public sector development, the minister of tourism and antiquities, the minister of planning and international cooperation, the minister of energy and mineral resources, the minister of culture, and the minister of social development. Of the 376 governorate seats, 53 were held by women. At the municipal council level, women won 28 indirectly elected seats and 57 by quota, of 1,783 total municipal council seats. At the local council (neighborhood) level, women won 231 seats in free competition and 324 through the quota system of 1,179 seats. No women won mayorships.

Citizens of Palestinian origin were underrepresented at all levels of government and the military. The law reserves nine seats in the lower house of parliament for Christians and three seats for the Circassian and Chechen ethnic minorities combined, constituting an overrepresentation of these minorities. The law stipulates that Muslims must hold all parliamentary seats not specifically reserved for Christians or on the national list. Seven Christians were in the upper house of parliament, with one, subsequently, leaving in June when appointed deputy prime minister. There are no reserved seats for the relatively small Druze population, but its members may hold office under their government classification as Muslims.

Christians served as cabinet ministers and ambassadors. There were four Christian ministers in the cabinet. There was one Druze cabinet member.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, although the government did not implement the law effectively. Some officials reportedly engaged in corrupt practices with impunity. During the year, there were some investigations into allegations of corruption but very few convictions. The use of family, business, and other personal connections to advance personal economic interests was widespread. There were allegations of lack of transparency in government procurement, government appointments, and dispute settlement. Corruption was a major theme of the protests that resulted in the government's resignation in the summer.

In response to these protests, newly appointed Prime Minister Razzaz stated in June that combating corruption and increasing transparency were priorities for the government; he and his ministers consulted with civil society on how to achieve this objective. On November 25, the government withdrew the proposed amendments to the long-tabled right to information law that intended to make it easier for citizens to obtain access to government information, but was seen as ineffective.

Corruption: The Jordan Integrity and Anticorruption Commission (JIACC) is the main body responsible for combating corruption, although the Anti-Money Laundering Unit is responsible for combating money laundering. Despite increased investigations, some local observers questioned the JIACC's effectiveness due to its limited jurisdiction, insufficient staff, legal obstacles, and the small number of investigations involving senior officials or large government projects. There were credible allegations that the commission failed to investigate cases involving high-level government officials.

The Ombudsman Bureau receives and investigates public complaints about corruption and misconduct by public officials.

The government has taken steps to address corruption and prosecute tax evasion.

A high profile anticorruption case involving illegal production and smuggling of tobacco was ongoing. In August, the State Security Court's Public Prosecution issued an Interpol Red Notice against the prime suspect in the case, businessman

Awni Motee, who fled the country before being arrested. The Public Prosecution coordinated with the Anti-Money Laundering Unit to freeze the suspect's assets, conduct financial analysis, and investigate the charges. While the king noted the case as evidence of the government's commitment to combating corruption, observers complained that referral of the case to the SSC would make it difficult to prosecute if the suspect was abroad.

Financial Disclosure: The law requires certain government officials, their spouses, and dependent children to declare their assets privately within three months of their assuming a government position. Officials rarely publicly declared their assets. Prime Minister Razzaz privately declared his assets in accordance with the law, but he did not publicly disclose them. Authorities blocked efforts by transparency activists to identify officials publicly who did not declare their assets. In the event of a complaint, the chief justice may review the disclosures. Under the law failure to disclose assets could result in a prison sentence of one week to three years or a fine of five to 200 JD (seven to \$280). No officials were punished for failing to submit a disclosure.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A number of domestic and international human rights groups operated in the country with some restrictions. The law gives the government the ability to control NGOs' internal affairs, including acceptance of foreign funding. NGOs generally were able to investigate and report publicly on human rights abuses, although government officials were not always cooperative or responsive. In at least one case, security services subjected a human rights NGO to intimidation. A legal aid organization reported that lawyers were harassed for following up on cases.

Government Human Rights Bodies: The NCHR, a quasi-independent institution established by law, received both government and international funding. The prime minister nominates its board of trustees, and the king ratifies their appointment by royal decree. The government appoints NCHR's commissioner general. The NCHR compiles an annual report assessing compliance with human rights that sometimes criticizes government practices. The NCHR submits the report to the upper and lower houses of parliament, and to the council of ministers. NCHR recommendations are not legally binding. In June parliament amended the law that established the NCHR to expand its authority to monitor and follow up with victims' and confirm receipt of promised compensation. Other amendments renewed the mechanism of appointing and terminating service of board of trustees

members, increased funding to implement awareness projects, and established branches and networks across the country.

In 2017 the prime minister established a permanent governmental committee headed by the GCHR to review NCHR recommendations and to measure progress towards international human rights standards. In May the GCHR office made public the government submission to the third UN Human Rights Council Universal Periodic Review (UPR) in November. The report detailed the country's efforts to implement UPR recommendations and declared a national commitment to enhance human rights. Ministries' working groups continued to meet and implement their responsibilities under the national human rights action plan, a 10-year comprehensive program launched in 2016, designed to reform laws in accordance with international standards and best practices, including integrating accessibility for persons with disabilities. Developments were regularly published on their websites. Ministries stated commitment to the plan, but expressed frustration with the limited resources available to implement it.

To implement the action plan, the GCHR maintained a team of liaison officers from government, NGOs, security agencies, and other formal institutions to improve collaboration and communication. The GCHR published an official statement inviting civil society to take part in the drafting of the government's report to the UPR as a commitment to the government's partnership with civil society.

The GCHR office convened 28 activities during the year in relation to the national human rights plan. Subjects included trafficking in persons, UN resolution 2250, recommendations for the Antinarcotics Department, legislative priorities ahead of the UPR, youth and technology, and workshops on modern slavery. In February the GCHR was appointed as the deputy president of the Higher Council for the Rights of Persons with Disabilities (HCD) Board of Trustees. In October the GCHR was elevated to cabinet level reiterating government commitment to improving the status of human rights in Jordan.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law stipulates a sentence of at least 10 years of imprisonment with hard labor for the rape of a girl or woman 15 years old or older. Spousal rape is not illegal. Parliament passed a revised domestic violence law in

2017 that clarified procedures for reporting and case management and specified that these complaints must receive expedited processing. The law made prosecution mandatory for felony offenses. Nonfelony offenses are first subjected to mediation by the Family Protection Department (FPD) of the PSD. The law now provides options for alternative sentencing in domestic violence cases with consent of the victim. NGOs noted that the law also now clarifies procedures for handling domestic violence, but the definition of domestic violence remains unclear.

In 2017 parliament abolished an article of the penal code that exonerated rapists who married their victims and amended another article prohibiting the “fit of fury” excuse for “honor crimes.” Parliament also amended the law to eliminate mitigated sentencing for honor crimes cases when the family would ordinarily drop charges. NGOs reported the number of women under protective detention decreased.

The government did not effectively enforce the law against rape, and violence against women was widespread. In January the Court of Cassation ruled that they would not allow reprosecution of a man who raped a woman in 2016 and married her to avoid criminal charges, despite the elimination of the exonerating clause in 2017.

Women may file complaints of rape or physical abuse with certain NGOs or directly with judicial authorities. As of August the FPD treated and investigated over 5,100 cases of domestic violence, including almost 1,300 cases of rape or sexual assault against women. The FPD actively investigated cases, but gave preference to mediation, with almost 2,500 of the cases referred to the social service office. Some NGOs and lawyers reported pressure against taking physical abuse cases to court. Spousal abuse is technically grounds for divorce, but husbands sometimes claimed religious authority to strike their wives. Observers noted while judges generally supported a woman’s claim of abuse in court, due to societal and familial pressure, as well as fears of violence such as honor killings, of which eight were reported in 2017, few women sought legal remedies.

The FPD continued to operate a domestic violence hotline and received inquiries and complaints via the internet and email. According to the Ministry of Social Development, the government maintained a second shelter for female victims of domestic violence in Irbid.

In November 2017 the Judicial Council assigned 107 judges, including 14 women, to specialize in handling domestic violence cases. In application of the 2017 domestic violence protection law, specialized judges were now expediting and classifying these cases; misdemeanor cases take roughly three months to resolve.

On July 30, the Ministry of Social Development officially opened Dar Aminah, a shelter for women at risk of violence and honor crimes. According to the minister and partnering NGO, 26 women, who were placed under “protective detention” in detention centers, would move to the shelter. As of October authorities had transferred 10 women to the shelter; 16 awaited transfer from Jweidah Prison.

Other Harmful Traditional Practices: During 2017 of the 42 women killed in the country through August, local media identified eight as “honor crimes.” Civil society organizations stated, however, many such crimes went unreported.

There were no reported instances of forced marriage as an alternative to a potential honor killing during the year, although NGOs noted that many cases of forced marriage occurred shortly after an accusation of rape due to family and societal pressure before any formal trial began. Observers noted that if a woman marries her rapist, according to customary belief, her family members do not need to kill her to “preserve the family’s honor,” a belief that persisted despite the 2017 amendment to the legal code.

As of August governors had begun referring potential victims of honor crimes to the Ministry of Social Development shelter Dar Aminah instead of involuntary protective custody in the Women’s Correctional and Rehabilitation Centers in the Jweideh and the Umm al-Lulu detention facilities.

Sexual Harassment: The law strictly prohibits sexual harassment and does not distinguish between sexual assault and sexual harassment. Both carry a minimum prison sentence of four years of hard labor. Parliament amended laws to set penalties for indecent touching and verbal harassment, but did not define or substantively strengthen protections against sexual harassment. The government did not enforce this law. Sexual harassment of women and girls in public was widely reported. In September the organizers of an outdoor festival were arrested and the venue, Seven Hills, was closed after allegations of sexual harassment spread on social media. The ensuing investigation led to criminal charges for the unauthorized sale of alcohol. NGOs reported refugees from Syria and foreign migrant workers, including garment workers and domestic workers, were

especially vulnerable to gender-based violence, including sexual harassment and sexual assault, in the workplace.

Coercion in Population Control: There were no reports of coerced abortion or involuntary sterilization.

Discrimination: The law does not provide for the same legal status, rights, and inheritance provisions for women as for men. Women experienced discrimination in a number of areas, including divorce, child custody, citizenship, the workplace, and, in certain circumstances, the value of their testimony in a sharia court.

No specialized government office or designated official handles discrimination claims. The Jordanian National Commission for Women, a government-supported NGO, operated a hotline to receive discrimination complaints.

Under sharia, as applied in the country, daughters inherit half the amount that sons receive. A sole female heir receives only half of her parents' estate, with the balance going to uncles, whereas a sole male heir inherits all of his parents' property. Women may seek divorce without the consent of their husbands in limited circumstances such as abandonment, spousal abuse, or in return for waiving financial rights. The law allows retention of financial rights under specific circumstances, such as spousal abuse. Special courts for each Christian denomination adjudicate marriage and divorce, but for inheritance, sharia rules apply by default.

The law allows fathers to prevent their children under the age of 18 from leaving the country through a court order that is not available to mothers. Authorities did not stop fathers from exiting the country with their children when the mother objected. Divorced mothers may put injunctions on their former spouses to prevent them from leaving the country with their children.

The government provided men with more generous social security benefits than women. Civil servants now follow the social security law, which contains provisions for family members to inherit the pension payments of deceased male and female civil servants. Laws and regulations governing health insurance for civil servants under the Civil Service Bureau now permit women to extend their health insurance coverage to dependents or spouses, even if they are not Jordanians. Men must be citizens to extend full insurance benefits to spouses and dependents.

Parliament's 2017 amendments of the penal code granted mothers permission to give consent for surgeries on their minor children without consent of their father.

Children

Birth Registration: Only fathers can transmit citizenship. The government did not issue birth certificates to all children born in the country during the year. The government deemed some children – including children of unmarried women, orphans, or certain interfaith marriages involving a Muslim woman and converts from Islam to another religion – illegitimate and denied them standard registration. Instead, the government issued these children unique national identification numbers, making it difficult for them to attend school, access health services, or receive other documentation. Authorities removed children born out of wedlock from their mothers and placed them in orphanages, regardless of the mother's desire for custody.

Education: Education is compulsory from ages six through 16 and free until age 18. No legislation exists to enforce the law or to punish guardians for violating it. Children without legal residency face obstacles to enrolling in public school. Some children of female citizens and noncitizen fathers must apply for residency permits every year, and authorities did not assure permission (see section 2.d., Stateless Persons). See section 2.d. for information on access to education for Syrian refugees.

Children with disabilities experienced extreme difficulty in accessing constitutionally protected early and primary education.

Child Abuse: No specific law provides protection for children, but other laws specify punishment for child abuse. For example, conviction for rape of a child younger than age 15 potentially carries the death penalty. There were no convictions for rape of a child under the age of 15 during the year. Local organizations working with abused children pointed to gaps in the legal system that regularly resulted in lenient sentencing, particularly for family members. In child abuse cases, judges routinely showed leniency in accordance with the wishes of the family. In some cases, authorities failed to intervene when confronted with reports of abuse, resulting in escalating violence and ultimately death.

In January the public prosecutor detained a woman for abuse related to the death of her three-year-old daughter. Forensic reports on her daughter concluded

widespread traces of torture and abuse and burns on 25 percent of her body. The case remained pending with the woman being held in Jweideh detention center.

Early and Forced Marriage: The minimum age for marriage is 18. With the consent of both a judge and a guardian, a child as young as 15 years old may be married. Judges have the authority to decide if marriage of girls between 15 and 18 years old would be “in their best interest” and to adjudicate the marriage contract.

Sexual Exploitation of Children: The law stipulates a penalty for the commercial exploitation of children of six months’ to three years’ imprisonment. The law prohibits the distribution of pornography involving persons under the age of 18. The law does not specifically prohibit the possession of child pornography without an intention to sell or distribute. The law penalizes those who use the internet to post or distribute child pornography. The minimum age of consensual sex is 18, although sexual relations between minors whose marriages the courts approved are legal.

Displaced Children: Given the large refugee population, there were significant numbers of displaced children (see section 2.d.).

Institutionalized Children: NGOs reported physical and sexual abuses occurred in government institutions. Authorities automatically referred cases involving violence against persons with disabilities or institutionalized persons to the FPD. The community monitoring committee highlighted the pervasive use of physical discipline; physical and verbal abuse; unacceptable living conditions; and a lack of educational, rehabilitative, or psychosocial services for wards and inmates.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State’s *Annual Report on International Parent Child Abduction* at <https://travel.state.gov/content/travel/en/International-Parental-Child-Abduction/for-providers/legal-reports-and-data.html>.

Anti-Semitism

Aside from foreigners, there was no resident Jewish community in the country. Anti-Semitism was present in media. Editorial cartoons, articles, and opinion pieces sometimes negatively depicted Jews without government response. The

national school curriculum, including materials on tolerance education, did not mention the Holocaust, but it was taught in some private school curriculums.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law generally provides equal rights to persons with disabilities, but authorities did not uphold such legal protections. Disabilities covered under the law include physical, sensory, psychological, and mental disabilities. The Higher Council for Affairs of Persons with Disabilities, a government body, worked with ministries, the private sector, and NGOs to formulate and implement strategies to assist persons with disabilities. During the year, the GCHR became the deputy president of the Higher Council for Disabilities to attempt better to integrate rights for persons with disabilities. Citizens and NGOs universally reported that persons with disabilities faced problems in obtaining employment and accessing education, health care, information, communications, buildings, transportation, the judicial system, and other services, particularly in rural areas.

In June 2017 parliament amended the law on the rights of persons with disabilities, strengthening protections for workers with disabilities and criminalizing neglect of persons with disabilities. The law requires private companies to hire workers with disabilities, forbids employers from firing employees solely because of their disability, and directs employers to make their workplaces accessible to persons with disabilities.

Activists noted the law lacked implementing regulations and funding, and authorities rarely enforced it. Authorities exempted from the quota employers who stated the nature of the work was not suitable for persons with disabilities. As part of the law, the government announced in 2017 a 10-year plan for full accessibility and inclusivity by 2027. In June 2018 the Ministry of Social Development announced its intention to transfer 500 persons with intellectual disabilities out from institutions into family or community environments. According to the Higher Council for the Rights of Persons with Disabilities, as of November 1,874 persons with disabilities remained institutionalized.

The electoral law directs the government to verify that voting facilities are accessible to persons with disabilities and allows such persons to bring a personal assistant to the polling station.

The law tasks the Special Buildings Code Department with enforcing accessibility provisions and oversees retrofitting of existing buildings to comply with building codes. The vast majority of private and public office buildings continued to have limited or no access for persons with disabilities. Municipal infrastructure such as public transport, streets, sidewalks, and intersections was not accessible.

The PSD national 9-1-1 emergency call center provided emergency services for citizens with hearing and speech impediments by using sign language over a video call. These PSD interpreters were also available for citizens to use when discussing issues with government offices where a representative who can communicate via sign language was not present.

An NCHR report from September noted that school classrooms were not fully accessible, and there were no qualified teachers for children with disabilities. Families of children with disabilities reported that teachers and principals often refused to include children with disabilities in mainstream classrooms.

Human rights activists and media reported on cases of physical and sexual abuse of children and adults with disabilities in institutions, rehabilitation centers, and other care settings. The government operated some of these institutions.

There was no information regarding abuses against those with disabilities and whether or not authorities took official action against those committing such abuses.

National/Racial/Ethnic Minorities

Four groups of Palestinians resided in the country, not including PRS, covered in section 2.d., many of whom faced some discrimination. Those who migrated to the country and the Jordan-controlled West Bank after the 1948 Arab-Israeli war received full citizenship, as did those who migrated to the country after the 1967 war and held no residency entitlement in the West Bank. Those still holding residency in the West Bank after 1967 were no longer eligible to claim full citizenship, but they could obtain temporary travel documents without national identification numbers, provided they did not also carry a Palestinian Authority travel document. These individuals had access to some government services; they

paid 80 percent of the rate of uninsured foreigners at hospitals and noncitizen rates at educational institutions and training centers. Refugees who fled Gaza after 1967 were not entitled to citizenship, and authorities issued them temporary travel documents without national numbers. These persons had no access to government services and were almost completely dependent on UNRWA services. Those who were able to enter the country, despite many being turned away at the border, had access to UNRWA services.

Palestinians were underrepresented in parliament and senior positions in the government and the military, as well as in admissions to public universities. They had limited access to university scholarships. They were well represented in the private sector.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Authorities can arrest LGBTI individuals for allegedly violating public order or public decency, which are crimes under the penal code. While consensual same-sex sexual conduct among adults is not illegal, societal discrimination against LGBTI persons was prevalent, and LGBTI persons were targets of violence and abuse, including rape, with little or no legal recourse against perpetrators. Transgender individuals were especially vulnerable to acts of violence and sexual assault. LGBTI persons reported discrimination in housing, employment, education, and access to public services. The law does not prohibit discrimination against LGBTI individuals. Some LGBTI individuals reported reluctance to engage the legal system due to fear their sexual orientation or gender identity would either provoke hostile reactions from police, disadvantage them in court, or be used to shame them or their families publicly. LGBTI community leaders reported that most LGBTI individuals were closeted and feared disclosure of their sexual orientation, gender identity, or sex characteristics. The Media Commission banned books containing LGBTI content.

During the year, there were reports of individuals who left the country due to fear that their families would kill them because of their gender identity.

HIV and AIDS Social Stigma

HIV/AIDS was a largely taboo subject. Lack of public awareness remained a problem, because many citizens believed the disease exclusively affected foreigners and members of the LGBTI community. Society stigmatized

HIV/AIDS-positive individuals, and they largely concealed their medical status. The government continued its efforts to inform the public about the disease and eliminate negative attitudes about persons with HIV/AIDS, but it also continued to test all foreigners annually for HIV/AIDS, hepatitis B, syphilis, malaria, and tuberculosis. The government deported migrant workers who tested HIV-positive.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law, including related regulations and statutes, provides for the right to form and join free trade unions and conduct legal strikes, but with significant restrictions. There is no right to collective bargaining, although the labor code provides for collective agreements. The law identifies specific groups of public- and private-sector workers who may organize and defines 17 industries and professions in which trade unions may be established. The establishment of new unions requires approval from the Ministry of Labor and at least 50 founding members. The law requires that these 17 trade unions belong to the government-linked General Federation of Jordanian Trade Unions, the country's sole trade union federation. The law authorizes additional professions on a case-by-case basis to form professional associations. The law allows foreign workers to join unions, but it does not permit them to form unions or hold union office. Authorities did not permit civil servants to form or join unions, and they cannot engage in collective bargaining. The constitution prohibits antiunion discrimination, and the law protects workers from employer retaliation due to union affiliation or activities. The law does not explicitly provide a worker fired due to antiunion views with the right to reinstatement.

Regulations refer conflicts during negotiations first to informal mediation between the concerned party and the employer. The parties to a conflict proceed in the following sequence until the conflict is resolved: a Ministry of Labor-appointed mediator for 21 days; then the minister of labor; then to a mediation council composed of an employer representative, a labor representative, and a chair appointed by the minister of labor; and finally to a labor court with a panel of ministry-appointed judges for 21 days. There are limits on the right to strike, including a requirement to provide a minimum of 14 days' notice to the employer. The law prohibits strikes if a labor dispute is under mediation or arbitration. The labor code prevents management from arbitrarily dismissing workers engaged in labor activism or arbitration, but NGOs reported enforcement was inconsistent due to the limited capacity of the 170 labor inspectors.

The government did not fully respect freedom of association and the right to collective bargaining. Many worker organizations were not independent of the government, and government influence on union policies and activities continued.

The government subsidized and audited salaries and activities of the General Federation of Jordanian Trade Unions and monitored union elections. The government denied recognition to independent unions organized outside the structure of the government-approved federation. The government did not meet with these unions, and the lack of legal recognition hampered their ability to collect dues, obtain meeting space, and otherwise address members' workplace concerns. Labor organizations also reported trouble getting government recognition for trade unions in new sectors beyond the 17 established in law.

There were no reports of threats of violence against union heads, although labor activists alleged that the security services pressured union leaders to refrain from activism that challenged government interests. Strikes generally occurred without advance notice or registration.

Labor organizations reported that some management representatives used threats to intimidate striking workers.

Some foreign workers, whose residency permits are tied to work contracts, were vulnerable to retaliation by employers for participating in strikes and sit-ins. Participation in a legally unrecognized strike counted as an unexcused absence under the law. The law allows employers to consider employment contracts void if a worker is absent more than 10 consecutive days, as long as the employer provides written notice. Labor rights organizations reported instances of refusing to renew foreign workers' contracts due to attempts to organize in the workplace.

Observers noted that the labor code did not explicitly protect nonunionized workers from retaliation. This was particularly the case for foreign workers in all sectors as well as citizens working in the public sector on short-term contracts (day laborers).

Labor NGOs working to promote the rights of workers generally focused on promoting the rights of migrant workers. Labor NGOs did not face additional or different government restrictions than those discussed in section 2.b.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor except in a state of emergency, such as war or natural disaster. The government made substantial efforts to enforce the law through inspections and other means. Labor activists noted that law enforcement and judicial officials did not consistently identify victims or open criminal investigations.

The government inspected garment factories, a major employer of foreign labor, and investigated allegations of forced labor. Forced labor or conditions indicative of forced labor occurred, particularly among migrant workers in the domestic work and agricultural sectors. In October labor inspectors closed at least three dormitories in the Mafrq Qualified Industrial Zone for conditions that inspectors described as “deplorable.” Activists highlighted the vulnerability of agricultural workers due to minimal government oversight. Activists also identified domestic workers, most of whom were foreign workers, as particularly vulnerable to exploitation due to inadequate government oversight, social norms that excused forced labor, and workers’ isolation within individual homes. NGOs reported the Joint Antitrafficking Unit preferred to settle potential cases of domestic servitude through mediation, rather than referring them for criminal prosecution. High turnover at the unit also reportedly made prosecution more difficult. The government issued domestic helper by-laws in 2015 which regulate the hiring contract terms, the employer responsibilities/rights, and the responsibilities of the recruitment office. Recruitment offices were inspected and found to be violating a rule that prohibits the use of pregnancy tests in hiring practices. The government ordered the end of the practice and took steps to ensure compliance, including distributing materials to recruiting offices on the rights of children born to foreign workers. The government continued to monitor the situation.

Government bylaws require recruitment agencies for migrant domestic workers to provide health insurance, workplace accident insurance, and insurance that reimburses the recruitment fees to employers when a worker leaves before fulfilling the contract. If the employer fails to pay the worker’s salary or to return the worker’s passport, then the employer would not be entitled to the insurance payment. The bylaws authorize the Ministry of Labor publicly to classify recruitment agencies based on compliance and to close and withdraw the license of poorly ranked agencies. As of July the ministry issued warnings to 65 recruitment agencies and transferred 74 cases of domestic helper complaints to the Joint Antitrafficking Unit. A closure recommendation is an internal procedure in which inspectors send their recommendation to close certain recruitment offices with

many labor violations to the minister of labor. Based on that recommendation, the minister may issue a closure decision.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law forbids employment of children younger than 16 years old, except as apprentices in nonhazardous positions. The law bans those between the ages of 16 and 18 from working in hazardous occupations, limits working hours for such children to six hours per day, mandates one-hour breaks for every four consecutive working hours, and prohibits work after 8 p.m., on national or religious holidays and on weekends.

There were instances of child labor, and many local and international organizations reported it was on the rise, particularly among Syrian refugees. In 2017 approximately 1.9 percent of the estimated four million children of all nationalities between the ages of five and 14 residing in the country were employed.

The Ministry of Labor's Child Labor Unit was responsible for coordinating government action regarding child labor in collaboration with the National Committee on Child Labor and, with the ministry's labor inspectors, was responsible for enforcing all aspects of the labor code, including child labor. Authorities referred violators to the magistrate's penalty court which handles labor cases; according to the Ministry of Justice, child labor cases are never referred to criminal courts. The law provides that employers who hired a child younger than age 16 pay a fine of as much as 500 JD (\$700), which doubles for repeat offenses.

Labor inspectors reportedly monitored cases of legally working children between 16 and 18, to issue advice and guidance, providing safe work conditions, and cooperate with employers to permit working children to attend school concurrently. In accordance with the labor code, the Ministry employed a zero-tolerance policy for labor of children below the age of 16 and hazardous work for children under 18 years old.

The government's capacity to implement and enforce child labor laws was not sufficient to deter violations. The government had limited capacity to monitor children working in the informal work sector, such as children working in family businesses and the agricultural sector.

The Ministries of Labor, Education, and Social Development collaborated with NGOs seeking to withdraw children from the worst forms of labor.

Syrian refugee children worked in the informal sector without legal work permits. They sold goods in the streets, worked in the agricultural sector, and begged in urban areas.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect to Employment and Occupation

Labor laws do not prohibit discrimination with respect to employment and occupation on the basis of race, sex, gender, disability, language, political opinion, national origin or citizenship, age, sexual orientation or gender identity, HIV-positive status or other communicable diseases, or social status.

Discrimination in employment and occupation occurred with respect to gender, disability, national origin, and sexual orientation (see section 6).

Union officials reported that sectors employing predominantly women, such as secretarial work, offered wages below the official minimum wage. Many women also reported traditional social pressures discouraged them from pursuing professional careers, especially after marriage. According to a Department of Statistics' survey on unemployment, economic participation by women was 15.2 percent, and unemployment among women holding a bachelor's degree was 77.1 percent compared to the overall unemployment rate of 18.7 percent.

Some persons with disabilities faced discrimination in employment and access to the workplace despite the Law on the Rights of Persons with Disabilities which requires 4 percent of a workplace of more than 50 employees to employ persons with disabilities. Some migrant workers faced discrimination in wages, housing, and working conditions irrespective of the labor law (see section 7.e.).

e. Acceptable Conditions of Work

The law provides for a national minimum wage, which was raised to 220 JD (\$310) per month from 190 JD (\$268).

The law sets a workweek of 48 hours and requires overtime pay for hours worked in excess of that level. Because there was no limit on mutually agreed overtime, the Ministry of Labor reportedly permitted employees in some industries, such as the garment sector, to work as many as 70 to 75 hours per week, although observers reported many foreign workers requested overtime work.

Employees are entitled to one day off per week. The law provides for 14 days of paid sick leave and 14 days of paid annual leave per year, which increases to 21 days after five years of service with the same firm. Workers also received additional national and religious holidays designated by the government. The law permits compulsory overtime under certain circumstances such as conducting an annual inventory, closing accounts, preparing to sell goods at discounted prices, avoiding loss of goods that would otherwise be exposed to damage, and receiving special deliveries. In such cases actual working hours may not exceed 10 hours per day, the employee must be paid overtime, and the period may not last more than 30 days. There is no cap on the amount of mutually agreed overtime.

Employers are required to abide by all occupational health and safety standards set by the government. The law requires employers to protect workers from hazards caused by the nature of the job or its tools, provide any necessary protective equipment, train workers on hazards and prevention measures, provide first aid as necessitated by the job, and protect employees from explosions or fires by storing flammable materials appropriately.

The Ministry of Labor is responsible for enforcement of labor laws and acceptable conditions of work. Ministry inspectors enforced the labor code but were unable to assure full compliance in every case due to lack of capacity and resources. Labor inspectors did not regularly investigate reports of labor or other abuses of domestic workers in private homes, and inspectors could not enter a private residence without the owner's permission except with a court order. Employees may lodge complaints regarding violations of the labor code directly with the Ministry of Labor or through organizations such as their union or the NCHR. The Ministry opened an investigation for each complaint.

Labor standards apply to the informal sector, but the Ministry of Labor lacked the capacity to detect and monitor workplace violations. Authorities struggled to apply consistently all the protections of the labor code to domestic and agricultural workers, due to the migratory nature of workers in these sectors, cultural barriers preventing direct entry into the workplace, and insufficient number of labor inspectors. Labor organizations stated that many freelancing agricultural and

domestic workers, cooks, and gardeners, mostly foreign workers, were not enrolled for social benefits from the Social Security Corporation because only salaried employees were automatically enrolled, and optional enrollment was limited to citizens.

The government took action to prevent violations and improve working conditions. As of July, however, the authorities had not closed a workplace for recruiting foreign workers without work permits. The Ministry of Labor placed a special focus on enforcing compliance in the Qualifying Industrial Zones, where most migrant garment workers were employed. The ratio of labor inspectors to workers or places of employment was significantly higher in these zones than for the general population. The government required garment export manufacturers to participate in the Better Work Jordan program, a global program implemented by the International Labor Organization and the International Finance Corporation to improve labor standards. During the year, all 77 foreign exporting factories required by the government to join Better Work Jordan were active members of the program.

Wage, overtime, safety, and other standards often were not upheld in several sectors, including construction, mechanic shops, day labor, and the garment industry. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Authorities did not effectively protect all employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely to encounter labor violations, including wages below the minimum wage and harassment in the workplace.

In the garment sector, foreign workers were more susceptible than citizens to dangerous or unfair conditions. In October labor inspectors traveled to the Industrial Zone in Mafraq to close several dormitories run by textile and garment companies, describing the conditions as “deplorable.” Better Work Jordan stated compliance regarding coercion improved. Indebtedness of migrant garment workers to third parties and involuntary or excessive overtime persisted.

Employers subjected some workers in the agricultural sector, the vast majority of whom were Egyptians, to exploitative conditions. According to a domestic NGO, agricultural workers usually received less than the minimum wage. Some employers in the agricultural sector also reportedly confiscated passports. Egyptian migrant workers were also vulnerable to exploitation in the construction industry; employers usually paid them less than the minimum wage, and they

lacked basic training and equipment necessary to uphold occupational health and safety standards.

Domestic workers often faced unacceptable working conditions. While domestic workers could file complaints in person with the Ministry of Labor's Domestic Workers Directorate or the PSD, many domestic workers complained there was no follow-up on their cases. During the year the Antitrafficking Unit at the PSD began operating its hotline 24 hours per day, seven days a week, with operators available in all languages spoken by migrant workers in the country, including Tagalog, Bengali, and Tamil.

In 2015 the prosecutor general charged a Jordanian woman in Irbid with premeditated murder after she allegedly beat an Indonesian domestic worker in her employ to death. The forensic report showed that the worker died due to brain hemorrhage. The court acquitted the Jordanian woman during the year.

Advocates for migrant domestic workers reported that domestic workers who sought government assistance or made allegations against their employers frequently faced counterclaims of criminal behavior from their employers. Employers could file criminal complaints or flight notifications against domestic workers with police stations. Authorities used a general amnesty waiving immigration overstay fines for workers deported for criminal allegations or unexpired work permits. The previous process had resulted in an entry ban of three consecutive years.

During the year dozens of domestic workers from the Philippines, Indonesia, and Sri Lanka sought shelter at their countries' embassies in Amman. Most of the domestic workers reportedly fled conditions indicative of forced labor or abuse, including unpaid wages and, to a lesser extent, sexual or physical abuse. By law, employers are responsible for renewing foreign employees' residency and work permits but often failed to do so for domestic employees. As a result authorities considered most of the domestic workers sheltered by embassies illegal residents, and many were stranded because they were unable to pay accumulating daily overstay fees to depart the country. The government continued its cooperation with foreign embassies to waive overstay fees for migrant domestic workers who wished to repatriate after a two-year stay in the country, a policy that greatly reduced the number of domestic workers stranded at their embassies' shelters.

As a result of poor working conditions experienced by some of its citizens, Indonesia continued to prohibit its citizens from traveling to Jordan (among

20 other countries in the region) as domestic workers; the policy has been in effect since 2016. Some human rights organizations argued that these bans heightened the vulnerability of foreign domestic workers who engaged unscrupulous recruitment agencies to migrate illegally to the country.